“Does Mom Have Too Much to Qualify?”

Questions families ask about Medicaid when care has already started.

You're not the first family to hear “she has too much money” and “spend down” in the same week. These are questions families ask at this point, answered in general terms.

None of the answers is about Mom in particular. Medicaid rules differ from state to state and they change, so where a question needs someone who knows her state and her situation, the answer says who to ask.

1 Can Mom qualify for Medicaid?

A general guide can't tell you, and this one won't try. What goes into the answer is known, though, and it isn't only money. Medicaid.gov says people generally must be residents of the state where they receive Medicaid, and to qualify for long-term care a person has to meet her own state's requirements for income, for assets and for the level of care she needs. The federal long-term care site adds that the care part is assessed separately from the finances. [1] [2] [3]

> **ASK A PROFESSIONAL WHEN** you have the basics on paper and want to know where she stands. That review is your Medicaid planner's work, done against the rules in her state.

2 Does she have too much income or too many assets?

That can't be settled from a bank balance or a monthly figure. When a state looks at income it counts some of it but not all, and with assets some are counted while others are excluded; the federal long-term care site adds that many assets are not counted at all. The amounts a person can have vary from state to state. So “too much” is a conclusion somebody reached, and it's fair to ask what they counted. [3]

> **ASK A PROFESSIONAL WHEN** someone has told you she has too much. Write down who said it and what they were looking at, and bring both to your Medicaid planner.

3 What does “spend down” mean?

In general, it's the name for using a person's income and assets to pay for care before she meets Medicaid's financial requirements. That is the sense the federal long-term care glossary gives it. The glossary doesn't say what counts, how much, or what the money may be spent on, and those depend on the state and on Mom's situation. Treat it as a phrase to have explained, not an instruction to follow. [4]

> **ASK A PROFESSIONAL WHEN** anyone suggests spending, moving or giving away something of Mom's. Have an elder law attorney or your Medicaid planner explain what it would mean for her first.

4 Why doesn't Medicare cover this?

Medicare doesn't pay for long-term care. Medicare.gov explains that most long-term care is non-medical help with the basic tasks of everyday life, and that Medicare and most health insurance don't pay for it. Medicaid is a separate program that offers benefits Medicare doesn't normally cover, like nursing home care and personal care services, for people who meet their state's rules. [5] [6]

> **ASK A PROFESSIONAL WHEN** you can't tell from a bill or a notice which program is paying for what. Ask the facility's business office or its social worker to go through it with you.

5 Why does everyone give us a different answer?

Often because they're describing different states, different programs or different years. The overall rules are federal, but states have considerable leeway in how they run their programs, so eligibility rules and covered services vary from state to state. The National Institute on Aging adds that benefits and eligibility requirements can change over time, and suggests checking with the programs directly for the most recent information. [7] [8]

> **ASK A PROFESSIONAL WHEN** two people have told you opposite things. Write both down, with who said each, and ask someone who works with your state's rules.

6 Does her house count?

It depends on the state and the situation, and this guide can't say more than that. What is general: a state may ask a homeowner to document the home's current fair market value and any loans against it, and states have varying rules about home equity. For now, write down whose names are on the deed and who lives there. [9] [10]

> **ASK A PROFESSIONAL WHEN** anyone is thinking about selling the house, renting it out or changing the names on the deed. Those are questions for an elder law attorney.

7 What if Mom's husband is still living at home?

Then more rules come into it. Medicaid.gov describes provisions meant to keep the spouse who is still living in the community from being left with little or no income or resources. Under them, it says, a certain amount of the couple's combined resources is protected for that spouse, and depending on his own income, some of hers can be set aside for his use. The amounts are updated from year to year, and how any of this may apply to one couple is for a professional who knows their state to say. [11]

> **ASK A PROFESSIONAL WHEN** Mom is married. Say so at the start of every conversation, and ask your Medicaid planner or an elder law attorney how her state applies these rules.

8 We've given money to family over the years. Does that matter?

It's something to write down, not something to judge yourselves. A state may ask an applicant to explain what happened to assets, and it will want to know whether any were given away. The federal glossary says transfers made during what is called the look-back period can mean a stretch of time when Medicaid doesn't pay for long-term care services. Whether that touches a particular gift depends on the state and the details. [9] [4]

> **ASK A PROFESSIONAL WHEN** anything has changed hands, or someone is thinking of moving something now. Bring the list to an elder law attorney or your Medicaid planner, and let them say what it means.

9 What needs to happen before we apply?

For your family, mostly gathering. To apply, a person fills out an application form and provides documentation to verify what's on it, and the state may take longer to decide when required documents are missing. The federal long-term care site says the best time to apply depends on a person's medical situation, marital status and the complexity of her finances, so the order of things is a question to ask. [9]

> **ASK A PROFESSIONAL WHEN** you're wondering whether to apply now or to sort something out first. That's a judgment to make with your Medicaid planner, and with an elder law attorney where a legal question is involved.

10 Who can answer these for Mom?

Your state's Medicaid office is, in the federal site's words, the best source of information about how to qualify in your state. An elder law attorney is the professional for legal questions, and exploring a person's qualifications for Medicaid is among the things the same site lists them doing. State Health Insurance Assistance Programs give one-on-one counseling on Medicare, Medicaid and related programs. Your Medicaid planner reviews a family's care and financial information against the rules that apply in the parent's state and care setting. [7] [12] [8]

> **ASK A PROFESSIONAL WHEN** you don't know which kind of professional a question belongs to. Ask any of them, and they can point you.

What this guide doesn't do

It doesn't answer any question about Mom herself, and it isn't legal, financial or tax advice. Anything that depends on her state, her finances or her care needs someone who has looked at all three.

Ready for the next step?

You have plain answers to the general questions. The planning interview is where the questions become about Mom: it asks about your family's situation and gives you a free planning report you can bring to any conversation about paying for care.

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WHERE THIS COMES FROM

1. KFF, Medicaid 101
2. Medicaid.gov (Centers for Medicare & Medicaid Services), Eligibility Policy
3. Administration for Community Living (LongTermCare information), Medicaid Eligibility
4. Administration for Community Living (LongTermCare information), Glossary
5. Medicare.gov (Centers for Medicare & Medicaid Services), Long Term Care Coverage

6. Medicare.gov (Centers for Medicare & Medicaid Services), Medicaid
7. Administration for Community Living (LongTermCare information), Medicaid
8. National Institute on Aging, Paying for Long-Term Care
9. Administration for Community Living (LongTermCare information), Applying for Medicaid
10. Justice in Aging, Medicaid Home and Community-Based Services for Older Adults: A Primer
11. Medicaid.gov (Centers for Medicare & Medicaid Services), Spousal Impoverishment
12. Administration for Community Living (LongTermCare information), Will I Need a Lawyer?

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